

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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THE ESTATE OF SHELDON A. SAMUEL, by the
Administrator of his Estate, SHELDON SAMUEL, Jr.,

Index No.: 523273/2017

Plaintiffs,

**AMENDED VERIFIED
COMPLAINT**

-against-

BROOKDALE HOSPITAL MEDICAL CENTER,
VOLODYMYR VULKANOV, MD, LARISA
MARARENKO, MD, RAMASWAMI P. SUNDAR, MD,
“JOHN/JANE DOE 1-3, M.D.” (said names being fictitious
but intended to represent those individuals who rendered
medical and nursing care and treatment to plaintiff at
the above-named facilities), POLICE OFFICER DEAN
ROBERT, POLICE OFFICER MOLINSKI (first name
unknown., shield #21578), POLICE OFFICER ASHLEY
GONZALEZ,

Defendants
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Plaintiff, by his attorneys, THE JACOB D. FUCHSBERG LAW FIRM, LLP, and THE
LAW FIRM OF RAY & ASSOCIATES, complaining of Defendants, allege as follows:

PRELIMINARY STATEMENT

1. On the evening of February 21, 2016, Sheldon Samuel was driving in Brooklyn, New York, making his way home to Queens, New York. He had not been drinking alcohol that day.

2. At approximately 11pm, he suffered a cerebral vascular accident (commonly known as a stroke or CVA) while driving.

3. The stroke caused Sheldon Samuel to crash his vehicle at a low rate of speed near the south West Corner of Glenmore Avenue and Sheffield Avenue in Brooklyn, NY.

4. Instead of recognizing that Sheldon Samuel was in the midst of a medical emergency the police officers at the scene and those who arrived shortly thereafter acted in concert by using

excessive force on Sheldon Samuel, smashing his car window, violently pulling him from his vehicle, throwing him to the pavement, and pummeling him.

5. Despite knowing that Sheldon Samuel had crashed his automobile and had just been subjected to excessive force, the police officers falsely arrested Sheldon Samuel and were deliberately indifferent to his serious medical condition. The police officers did not call for an ambulance or any other sort of medical assistance, but instead took their time, eventually bringing Sheldon Samuel to Brookdale Medical Center shackled in the back of a police car.

6. The police officers conspired to fabricate evidence, including that Sheldon Samuel was intoxicated by alcohol, and informed the medical providers at Brookdale of this falsehood.

7. The medical providers at Brookdale Medical Center accepted the police officers at their word and failed in their duty to properly assess Sheldon Samuel, even after blood alcohol tests quickly came back showing alcohol was not detectable in Sheldon Samuel's blood.

8. It took medical providers at Brookdale Hospital nearly two-and-a-half days to finally recognize that Sheldon Samuel was suffering from a stroke. During that two-and-a-half day period Sheldon Samuel was neglected by medical personnel and was continuously handcuffed and shackled.

9. Treating provider Louis Cornacchia, MD, noted in the Brookdale Medical Center records on February 24, 2016, at approximately 1442 hours that "[i]t seems probable that the left CVA was the admitting diagnosis". However, instead of coming to this diagnosis upon admission, the medical providers at Brookdale Medical Center erroneously accepted the fabricated information from the police department that Mr. Samuel was intoxicated, ignoring his actual symptoms and failing to properly assess the patient who was in police custody.

10. Sheldon Samuel died at Brookdale Medical Center from complications of his stroke on March 6, 2016.

11. Sheldon Samuel was deprived of his dignity as he sat handcuffed, shackled and under arrest in Brookdale Hospital from the evening of February 21, 2016, until the time of his death on March 6, 2016.

12. An autopsy showed the damage done to Sheldon Samuel's brain from the stroke and its sequelae, and the injuries Sheldon Samuel had to his body. More than two weeks after being falsely arrested and having excessive force was used on him, Sheldon Samuel's body was still covered in contusions and abrasions which were caused by the excessive force used by the named police officer defendants and their co-conspirators.

13. The actions and omissions of the police officers resulting from the arrest, detention, imprisonment, use of excessive force, and denial of medical care to Sheldon Samuel deprived decedent of rights, privileges, and immunities as granted under the United States Constitution, Amendments One, Four, Five, Eighth and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§1981, 1983, 1985, 1986 and 1988.

14. The actions and omissions of the medical providers constituted medical malpractice as numerous deviations from the standard of care occurred.

AS AND FOR A FIRST CAUSE OF ACTION-MEDICAL MALPRACTICE

15. Plaintiff realleges each and every allegation laid out above

16. Plaintiff Sheldon Samuel was a resident of the County of Queens, City and State of New York, at the time of his death.

17. At all times hereinafter mentioned, plaintiff Sheldon Samuel, Jr., was and is a resident of the County of Queens City and State of New York.

18. At all pertinent times, defendant Brookdale Hospital Medical Center (“Brookdale”) was a domestic professional corporation, organized and existing under the laws of the State of New York.

19. At all pertinent times, defendant Brookdale, owned, operated, controlled, and managed a hospital pursuant to the laws of the State of New York for the care of the sick, located at 1 Brookdale Plaza, Brooklyn, NY 11212, which provided personnel, including doctors, nurses, residents, attendants and others for the care and treatment of its patients and which held itself out to the public as furnishing treatment facilities where patients, including the decedent Sheldon Samuel, could be treated for various ailments.

20. At all times pertinent hereto defendant Brookdale employed, and/or provided personnel, including resident physicians, physicians, physician assistants, emergency medicine physicians, independent contractors, nurses, nurses’ aides, nurse practitioners, laboratory personnel, staff members and others for the care, diagnosis, testing, evaluation, examination, advising and treatment of its patients, including decedent Sheldon Samuel.

21. At all times pertinent hereto, defendant Brookdale represented expressly and/or impliedly that their agents, servants, employees, physicians, interns, residents, emergency medicine physicians, staff physicians, independent contractors, nurses, nurses’ aides, nurse practitioners, physician assistants, and affiliated physicians, and those physicians to whom privileges had been extended at Brookdale, to be able, competent, and qualified to order, recommend, request, advise, perform, render, or provide all of the professional examinations, evaluations, care, treatments, procedures, tests, studies, services, or advice ordered for, recommended for, requested for, advised for, performed upon, rendered to, provided for, or required by Sheldon Samuel.

22. At all pertinent times, defendant, Volodymyr Vulkanov, MD, (hereinafter referred to as “Vulkanov”), was a physician duly licensed to practice medicine in the State of New York.

23. At all pertinent times, defendant Vulkanov held himself out to the general public, and in particular to Sheldon Samuel and his police escorts, as a physician offering professional services and medical care and treatment.

24. At all pertinent times, Vulkanov was an attending physician and/or an agent, and/or a servant, and/or an employee, at Brookdale who undertook the care, diagnosis, testing, evaluation, examination, advising and treatment of Sheldon Samuel.

25. At all pertinent times, defendant, Larisa Mararenko, MD, (hereinafter referred to as “Mararenko”), was a physician duly licensed to practice medicine in the State of New York.

26. At all pertinent times, defendant Mararenko held herself out to the general public, and in particular to Sheldon Samuel and his police escorts, as a physician offering professional services and medical care and treatment.

27. At all pertinent times, Mararenko was an attending physician and/or an agent, and/or a servant, and/or an employee, at Brookdale who undertook the care, diagnosis, testing, evaluation, examination, advising and treatment of Sheldon Samuel.

28. At all pertinent times, defendant, Ramaswami P. Sundar, MD, (hereinafter referred to as “Sundar”), was a physician duly licensed to practice medicine in the State of New York.

29. At all pertinent times, defendant Sundar held himself out to the general public, and in particular to Sheldon Samuel and his police escorts, as a physician offering professional services and medical care and treatment.

30. At all pertinent times, Sundar was an attending physician and/or an agent, and/or a servant, and/or an employee, at Brookdale who undertook the care, diagnosis, testing, evaluation, examination, advising and treatment of Sheldon Samuel.

31. At all pertinent times, defendants Brookdale, Vulkanov, Mararenko and Sundar stood in such a relationship with each other in their care and treatment of Sheldon Samuel as to make each liable for the acts and omissions of the other.

32. From on or about February 21, 2016 until his death on March 6, 2016, Sheldon Samuel sought the continuing professional care of defendants Brookdale, Vulkanov, Mararenko and Sundar for certain medical complaints from which Sheldon Samuel was suffering, including, but not limited to, having been in a car accident, having altered mental status, being nonverbal, being unable to follow commands, and having weakness in his right upper extremity, and defendant, their agents, servants, physicians, and employees rendered medical care, diagnosis, treatment, and services to Sheldon Samuel.

33. The above medical care, diagnosis, treatment, and services were rendered carelessly, unskillfully, negligently, by defendants Brookdale, Vulkanov, Mararenko and Sundar and others at Brookdale, and was not in accordance with accepted standards of medical care, diagnosis, treatment and services in the community.

34. Among the other departures from the standard of care, defendants Brookdale, Vulkanov, Mararenko and Sundar, individually and through their agents and employees, failed to timely diagnose Sheldon Samuel' condition, failed to timely diagnose Sheldon Samuel as suffering from a stroke, had "tunnel vision" and accepted the police officers fabricated statements that the patient was intoxicated, failed to conduct their own independent assessment of the patient and instead accepted the police officers fabricated statements, failed to recognize at approximately 0240

hours on February 22, 2016, that blood alcohol levels in the patient were undetectable, failed to reassess the patient after the blood alcohol test demonstrated the patient was not intoxicated, failed to administer tissue plasminogen activator upon receiving the results showing the patient had no alcohol in his system or even before that time, failed to administer mannitol or hypertonic saline solutions, failed to recognize that most intoxicated people are overly vocal not non-verbal, failed to recognize the significance of the patient being non-verbal, failed to recognize the significance of the patients being able to follow less and less commands as time went on, failing to timely conduct an MRI, failed to timely contact the patients next of kin to better understand the patient's baseline status, failed to timely call a neurology and/or neurosurgery consult, failed to perform a timely craniotomy or other neurological procedure. This list of departures from the standard of care is not an exhaustive list of all deviations from good and accepted practice.

35. Defendants Brookdale, Vulkanov, Mararenko and Sundar and others at Brookdale failed to advise police officers and others with the New York City Police Department that Sheldon Samuel did not have alcohol in his system, despite knowing this to be the case within a short period of time after Sheldon Samuel's arrival at Brookdale.

36. By the reason of the above negligence, Sheldon Samuel was not timely diagnosed as suffering from a stroke, sustained great pain, agony, injury, suffering, disability, hospitalization, mental anguish, emotional distress, loss of enjoyment of life, and death.

37. By reason of the above, Plaintiffs bring this action for Sheldon Samuel's damages, both general and special, both individually and to his estate, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION-NEGLIGENT HIRING, RETENTION
AND SUPERVISION**

38. Plaintiff realleges each and every allegation laid out above.

39. Brookdale was negligent in hiring and supervising medical personnel who were careless, unskillful, negligent, and who did not possess the requisite knowledge and skill of medical professionals in the community.

40. By reason of the above, Sheldon Samuel sustained great pain, agony, injury, suffering, disability, hospitalization, mental anguish, emotional distress, loss of enjoyment of life, and death.

41. By reason of the above, Plaintiff brings this action for damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION-LACK OF INFORMED CONSENT

42. Plaintiff realleges each and every allegation laid out above.

43. Brookdale, Vulkanov, Mararenko and Sundar their agents, servants and employees, failed to inform Sheldon Samuel, or his representatives, of the reasonably foreseeable risks and benefits of, and alternatives to, the treatment proposed and rendered, which would have been disclosed by a reasonable medical practitioner in similar circumstances, in consequence of which, defendants failed to obtain an informed consent thereto.

44. A reasonably prudent person in the position of Sheldon Samuel or his representatives would not have undergone the treatment and diagnosis rendered herein if s/he had been fully informed.

45. The lack of informed consent alleged herein is a proximate cause of the injuries, conditions and disabilities for which recovery is sought.

46. By reason of the above, Sheldon Samuel sustained great pain, agony, injury, suffering, disability, hospitalization, as well as mental anguish, emotional distress and death.

**AS AND FOR THE FOURTH CAUSE OF ACTION FOR VIOLATION OF CIVIL AND
CONSTITUTIONAL RIGHTS PURSUANT TO §1983: EXCESSIVE FORCE – FALSE
ARREST-MALICIOUS PROSECUTION-IMPRISONMENT-AND DELIBERATE
INDIFFERENCE TO A SERIOUS MEDICAL CONDITION**

47. Plaintiff realleges each and every allegation laid out above

48. A Notice of Claim was timely served on The City of New York on March 25, 2016, and more than thirty (30) days have elapsed since the first claim was presented and The City of New York has neglected or refused to make an adjustment or payment on said claim.

49. At all pertinent times, defendant Police Officer Dean Robert, tax # 937392 (“Robert”) was an employee and police officer of the City of New York and the New York City Police Department.

50. At all pertinent times, defendant Robert was acting under “color of law” and within the scope of his duties and employment under grant of authority given by the City of New York and the New York City Police Department.

51. Defendant Robert was the “arresting officer” of Sheldon Samuel on February 21, 2016. Defendant Robert fabricated that Sheldon Samuel refused to take a breath test in order to have a reason to place Sheldon Samuel under arrest and deprive him of his Constitutional rights.

52. At all pertinent times, defendant Police Officer Molinski (first name is unknown but the officer’s shield # is 21578) (“Molinski”) was an employee and police officer of the City of New York and the New York City Police Department.

53. At all pertinent times, defendant Molinski was acting under “color of law” and within the scope of his duties and employment under grant of authority given by the City of New York and the New York City Police Department.

54. Defendant Molinski fabricated smelling alcohol on Sheldon Samuel’s breath in order to have a reason to place Sheldon Samuel under arrest and deprive him of his Constitutional rights.

55. At all pertinent times, defendant Police Officer Ashley Gonzalez (“Gonzalez”) was an employee and police officer of the City of New York and the New York City Police Department.

56. At all pertinent times, defendant Gonzalez was acting under “color of law” and within the scope of her duties and employment under grant of authority given by the City of New York and the New York City Police Department.

57. Defendant Gonzalez fabricated that Sheldon Samuel tried to run her and/or other police officers over with his vehicle in order to have a reason to place Sheldon Samuel under arrest and deprive him of his Constitutional rights.

58. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators were working within and under the command of Police Service Area (“PSA”) 2 and/or the 075 precinct.

59. On or about February 21, 2016, Sheldon Samuel, was driving his automobile and he suffered a stroke while driving.

60. The stroke caused Sheldon Samuel to crash his vehicle at a low rate of speed near the south West Corner of Glenmore Avenue and Sheffield Avenue in Brooklyn, NY.

61. Police officers, including defendant Gonzalez observed this low speed accident. Instead of properly assessing Sheldon Samuel to check to see if he was injured, defendant

Gonzalez and co-conspirators immediately began to treat Sheldon Samuel as a “criminal” not as a person who may be in need of medical assistance.

62. Sheldon Samuel, was falsely, maliciously, and illegally harassed, placed under arrest and falsely charged pursuant to penal law: PL 205.30 (resisting arrest), PL 120.20 (reckless endangerment), VTL 1192 03 (DWI-1st Offense), VTL 1212 (Reckless driving), VTL 1192 01 (DWAI Alcohol), VTL 1194 01B (Refusal to take breath test), inter alia, by Robert, Molinski, Gonzalez, and other co-conspirators, including, but not limited to those that were their agents, servants and/or employees and/or those they supervised, directed, and/or ordered and/or those that supervised, directed, and/or ordered them.

63. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators acted in bad faith and without probable cause and/or justification in committing the aforesaid acts of excessive force, arrest and imprisonment and in falsely charging Sheldon Samuel pursuant to penal law: PL 205.30 (resisting arrest), PL 120.20 (reckless endangerment), VTL 1192 03 (DWI-1st Offense), VTL 1212 (Reckless driving), VTL 1192 01 (DWAI Alcohol), VTL 1194 01B (Refusal to take breath test), inter alia.

64. At all pertinent times, the aforesaid false, malicious, and illegal arrest of Sheldon Samuel by defendants Robert, Molinski, Gonzalez and their co-conspirators constituted harmful, offensive, and unlawful contact with Sheldon Samuel.

65. At all pertinent times, the aforesaid harmful, offensive, and unlawful contact of defendants Robert, Molinski, Gonzalez and their co-conspirators was with Sheldon Samuel’s person.

66. At all pertinent times, the aforesaid harmful, offensive, and unlawful contact with Sheldon Samuel’s person by defendants Robert, Molinski, Gonzalez and their co-conspirators was

in the form of excessive force, causing the driver's side window of Sheldon Samuel's vehicle to be smashed in while Sheldon Samuel was sitting in the driver's seat and then forcing Sheldon Samuel, who was in the midst of a stroke, to be propelled out of his automobile into the air and then with great force onto the pavement where further excessive force was then used.

67. Upon arrival at Brookdale, it was noted that Sheldon Samuel had numerous abrasions to his elbow, eyebrow, and inner lips/mouth. An autopsy done more than two weeks later showed that Sheldon Samuel also had numerous abrasions to his upper and lower extremities. These injuries were the result of the excessive force used by the named officers and their co-conspirators. Using excessive force on an individual in the midst of a stroke violates, among other rights and privileges, the Eight Amendment's prohibition against cruel and unusual punishment.

68. At all pertinent times, Sheldon Samuel had not committed or attempted to commit any illegal act. The fact that Sheldon Samuel was in the midst of a stroke demonstrates he could not have the requisite mens rea to commit a crime, and his mental state from the stroke exculpates his conduct.

69. At all pertinent times, the aforesaid arrest was malicious, unlawful, effectuated by use of excessive force, and not based upon a warrant, probable cause and/or other justification and Sheldon Samuel was therefore falsely arrested, imprisoned, and falsely charged pursuant to penal law: PL 205.30 (resisting arrest), PL 120.20 (reckless endangerment), VTL 1192 03 (DWI-1st Offense), VTL 1212 (Reckless driving), VTL 1192 01 (DWAII Alcohol), VTL 1194 01B (Refusal to take breath test), inter alia.

70. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators failed to call for an ambulance or any other medical assistance and acted with deliberate

indifference to a serious medical need of Sheldon Samuel's in violation Eight Amendment Rights to be free of cruel and unusual punishment. Failure to get medical assistance to the scene deprived Sheldon Samuel of a proper and timely medical assessment.

71. At all pertinent times, after being falsely, maliciously, illegally arrested, falsely charged, and deprived of timely medical care, Sheldon Samuel was subsequently transported to and unlawfully detained by Roberts and his co-conspirators and was shackled to a hospital bed despite suffering from a stroke.

72. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators knew or should have known through the exercise of proper procedure and reasonable investigation, that Sheldon Samuel was suffering from a medical emergency and that he was not intoxicated.

73. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators knew or should have known through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest, imprisonment and charges were unwarranted and without probable cause.

74. At approximately 0240 hours on February 22, 2016, and about three hours after the false arrest and use of excess force, blood alcohol levels came back at Brookdale showing alcohol was undetectable in Sheldon Samuel's blood. Sheldon Samuel was still in police custody at that time.

75. Defendant police officers and their co-conspirators, who instructed medical personnel at Brookdale to test the patient's blood for alcohol either failed to follow-up on this finding, or ignored it. This failure to heed the blood test showing no alcohol in the blood is further evidence demonstrating that the police defendants and their co-conspirator's conduct was driven by a desire to violate Sheldon Samuel's rights. This finding of no alcohol in the blood eviscerated the fabricated

probable cause the police officers conspired to create to arrest and criminally charge Sheldon Samuel.

76. The fact that over countless days the police officers failed to heed the negative blood alcohol level is also evidence of a conspiracy among officers to deprive Sheldon Samuel of his rights.

77. At all pertinent times, the aforementioned acts of excessive force, arrest, imprisonment and denial of medical care were made with knowledge of and/or negligent and/or reckless disregard and/or grossly negligent of the material falseness of the criminal complaint.

78. At all pertinent times, the aforementioned acts of excessive force, arrest and imprisonment were made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint.

79. At all pertinent times, the actions of defendants Robert, Molinski, Gonzalez and their co-conspirators resulting from the arrest, detention, imprisonment, assault, use of excessive force, and denial of medical care to Sheldon Samuel constituted an unlawful arrest and imprisonment, detention, use of excessive force and denial of medical care which deprived decedent of rights, privileges, and immunities as granted under the United States Constitution, Amendments One, Four, Five, Eighth and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§1981, 1983, 1985, 1986 and 1988.

80. At all pertinent times, the aforementioned complained of conduct was either the result of an official policy or unofficial custom, including but not limited to policies and customs concerning the hiring, training, supervision, retention and discipline of the City's agents, servants and/or employees, and those involving the arrest and detention of individuals, including and especially those persons such as the decedent.

81. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators established and/or participated a custom, policy and/or practice of encouraging, approving and/or tolerating the use of excessive force and acts of misconduct against civilians and especially those persons such as Sheldon Samuel, who was of African American descent, and subsequent attempts to conceal such actions by failing to adequately train, supervise and discipline their agents, employees, offices and officers.

82. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and especially those civilians who are of African American descent, and established and/or participated in a custom, policy and/or practice of encouraging, approving and/or tolerating the said use of improper procedures and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agents, employees offices and officers.

83. At all pertinent times, the actions of defendants Robert, Molinski, Gonzalez and their co-conspirators deprived Sheldon Samuel of his liberty in violation of his civil and constitutional rights as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

84. At all pertinent times, the actions of defendants Robert, Molinski, Gonzalez and their co-conspirators were undertaken under color of law and would not have existed but for said defendants Robert, Molinski, Gonzalez and their co-conspirators use of their official power.

85. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators conspired with The City of New York, and acted in concert to discriminate against and deprive Sheldon Samuel, of his Constitutional and Civil rights.

86. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators, as a matter of policy, were deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise supervise the individuals engaged in such practices.

87. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators were not properly or effectively trained with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

88. At all pertinent times, the actions and motivations of defendants Robert, Molinski, Gonzalez and their co-conspirators was in contravention of the United States Constitution and the Constitution of the State of New York.

89. Sheldon Samuel remained shackled even after there was conclusive evidence in the form of a blood alcohol test that showed had no alcohol in his system. Sheldon Samuel remained shackled even after it was determined he had suffered from a stroke and he underwent surgery.

90. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators authorized, approved, permitted, allowed, ratified, enabled, equipped, supported, assisted, encouraged, and promoted each other and the conduct of each other that violated Sheldon Samuel's Constitutional Rights.

91. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators acted in concert and assisted each other in using excess force on Sheldon Samuel depriving him of rights and privileges.

92. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators acted in concert and assisted each other in fabricating evidence against Sheldon Samuel depriving him of rights and privileges.

93. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators acted in concert and assisted each other in falsely arresting, imprisoning, and bringing criminal charges against Sheldon Samuel depriving him of rights and privileges.

94. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators acted in concert and assisted each other in delaying getting Sheldon Samuel necessary and life-saving medical treatment depriving him of rights and privileges.

95. At all pertinent times, defendants Robert, Molinski, Gonzalez and their co-conspirators stood in such a relationship with each other in their violation of Sheldon Samuel's Constitutional rights as to make each liable for the acts and omissions of the other.

96. As a result of all of the foregoing, Sheldon Samuel, was proximately caused to sustain and did suffer severe and serious personal injuries, including death.

97. By reason of the above, plaintiff, Sheldon Samuel, Jr., brings this action for conscious pain and suffering and for damages, wrongful death, general, special, and punitive, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR THE FIFTH CAUSE OF ACTION FOR WRONGFUL DEATH

98. Plaintiff realleges each and every allegation laid out above.

99. That on or about March 6, 2016, Sheldon Samuel died.

100. That on September 15, 2017, Sheldon Samuel, Jr. was appointed administrator of the estate of Sheldon Samuel.

101. Sheldon Samuel's death was caused by the above reference negligence medical care and deprivation of Constitutional rights.

AS AND FOR THE SIXTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

102. Plaintiff realleges each and every allegation laid out above.

103. The aforesaid conduct by defendants Robert, Molinski, Gonzalez and their co-conspirators lacked moral turpitude, was reprehensible, and demonstrated a gross, wanton, depraved indifference and/or deliberate and reckless disregard for the life and safety of Sheldon Samuel.

104. More specifically, defendants Robert, Molinski, Gonzalez and their co-conspirators intentionally, willfully, recklessly, and/or wantonly implemented the aforementioned acts of excessive force, arrest, imprisonment and denial of medical care with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal complaint.

105. Additionally, despite the above findings, which were all undeniably conspicuous to defendants Robert, Molinski, Gonzalez and their co-conspirators intentionally, willfully, recklessly, and/or wantonly shackled Sheldon Samuel, who was in the midst of a stroke, and continued to have him shackled throughout a nearly three week long hospital admission, including after brain surgery and up until the time of his death.

106. Imposing punitive damages on defendants Robert, Molinski, Gonzalez and their co-conspirators would serve the public interest in punishing the said defendants for, and deterring them from, their intentional, willful, and/or wanton conducts, and for their gross negligence.

107. As a result of all of the foregoing, Sheldon Samuel, was proximately caused to sustain and did suffer severe and serious personal injuries, including death.

108. By reason of the above, the Estate of Sheldon Samuel, brings this action for conscious pain and suffering, wrongful death and for damages, general, special, and punitive, in

an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR THE SEVENTH CAUSE OF ACTION FOR ATTORNEY'S FEES

109. Plaintiff realleges each and every allegation laid out above.

110. The actions of defendants Robert, Molinski, Gonzalez and their co-conspirators heretofore described resulting from the February 21, 2016, false arrest, false imprisonment, assault, use of excessive force, malicious prosecution, and deliberate indifference to a serious medical condition of Sheldon Samuel constituted an unlawful arrest imprisonment, assault, use of excessive force, malicious prosecution, and deliberate indifference to a serious medical condition which deprived plaintiff of rights, privileges, and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five, Eight, and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, and the complained of conduct was either the result of an official policy or unofficial custom, including but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of defendants Robert, Molinski, Gonzalez, and their co-conspirators their agents, servants and/or employees, and those involving the arrest, detention and prosecution of individuals, including and especially, those persons such as Sheldon Samuel who was of African American ethnic descent

111. That Plaintiffs have incurred significant attorneys' fees in the prosecution of the above referenced claims against these defendants.

112. That in the event that Plaintiffs are successful in the prosecution of the aforesaid claims, Plaintiffs shall be a prevailing party within the meaning of 42 USC § 1988 and entitled to

the recovery of said attorneys' fees from defendants Robert, Molinski, Gonzalez, these defendants co-conspirators and/or those responsible for the behavior and conduct of defendants Robert, Molinski, Gonzalez and their co-conspirators.

113. By reason of the above, the estate of Sheldon Samuel, brings this action for conscious pain and suffering and for damages, general, special, and punitive, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

114. This action falls within one or more of the exceptions set forth in CPLR 1602, and as such the defendants are jointly and severally liable pursuant to the exceptions set forth in Article 16 of the CPLR.

115. Pursuant to CPLR Section 1602 (2) (iv), defendants are jointly and severally liable for all of Sheldon Samuel's damages, including but not limited to his non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed Sheldon Samuel a non-delegable duty of care.

116. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of Sheldon Samuel's damages, including but not limited to his non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that said defendants are vicariously liable for the negligent acts and omissions of its servants, agents, and/or employees.

117. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of Sheldon Samuel and his estate's damages, including but not limited to non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that said defendants acted with reckless disregard for the safety of others.

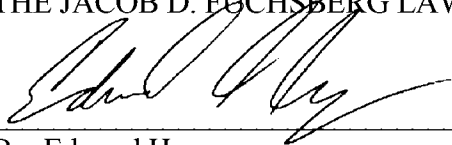
WHEREFORE, Plaintiffs demand judgment against defendants in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action, together with the costs and disbursements of this action, and interest as allowed by law, including, but not limited to:

- I. Actual and compensatory damages.
- II. Punitive damages against the police Defendants sufficient to punish them and to deter further wrongdoing;
- III. Treble damages;
- IV. Exemplary damages;
- V. Attorneys' fees, litigation expenses, costs, pre- and post-judgment interest as provided by law;
- VI. and such other and further relief as the Court deems just and proper.

Dated: New York, New York
June 13, 2018

Yours, etc.

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ATTORNEY'S VERIFICATION BY AFFIRMATION

EDWARD HYNES, an attorney duly licensed to practice before the Courts of the State of New York, affirms the following to be true under penalties of perjury:

I am associated with the Jacob D. Fuchsberg Law Firm, LLP, attorneys for plaintiff in the within action. I have read the foregoing VERIFIED COMPLAINT and know the contents thereof and the same is true to my own knowledge, except as to the matters I believe to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my office's files.

The reason I make the foregoing affirmation instead of plaintiffs herein because the plaintiffs reside outside of the county wherein your Affirmant maintains offices.

DATED: New York, New York
June 13, 2018



Edward Hynes

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
THE ESTATE OF SHELDON A. SAMUEL, by the
Administrator of his Estate, SHELDON SAMUEL, Jr.,

Plaintiff,

-against-

BROOKDALE HOSPITAL MEDICAL CENTER,
VOLODYMYR VULKANOV, MD, LARISA
MARARENKO, MD, RAMASWAMI P. SUNDAR, MD,
"JOHN/JANE DOE 1-3, M.D." (said names being fictitious
but intended to represent those individuals who rendered
medical and nursing care and treatment to plaintiff at
the above-named facilities), POLICE OFFICER DEAN
ROBERT, POLICE OFFICER MOLINSKI (first name
unknown., shield #21578), POLICE OFFICER ASHLEY
GONZALEZ,

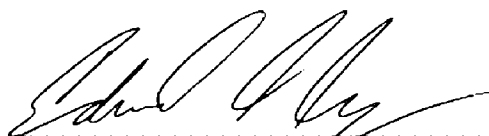
Defendants.
-----X

CERTIFICATE OF
MERIT

Index No.:
523273/2017

EDWARD HYNES, the undersigned, an attorney admitted to practice in the Supreme Court of the State of New York, County of New York, states that he is associated with The Jacob D. Fuchsberg Law Firm, attorneys for the plaintiff in the within action. I have reviewed the facts of this case and have consulted with at least one physician who is licensed to practice in this State or any other state and who I reasonably believe is knowledgeable in the relevant issues involved in this action, and I have concluded on the basis of such review and consultation that there is a reasonable basis for the commencement of this action.

Dated: New York, New York
June 13, 2018


EDWARD HYNES, Esq.